Stop the Williams Pipeline Coalition
% Sara Gronim
35 Prospect Park West, Apt. 13C
Brooklyn, New York 11215

July 17, 2020

Via email at john.rhodes@dps.ny.gov
John B. Rhodes, Chair and Chief Executive Officer,
New York State Public Service Commission

Via email at secretary@dps.ny.gov
Michelle L. Phillips, Secretary to the Public Service Commission

Re: Case No. 19-G-0678

Dear Commissioner Rhodes and Secretary Phillips,

We are writing in response to the letter from Secretary Phillips dated July 2, 2020 (the "Response Letter"), which was a reply to the letter of this coalition dated June 23, 2020 in which we asked for an update on the status of the PSC's agreement on National Grid's long-term energy proposals and for greater transparency in the decision-making process going forward. (A copy of the Response Letter is attached). Under the Order Adopting and Approving Settlement dated November 26, 2019 (the "Settlement Order") in Case No. 19-G-0678 (the "Long Term Options Case"), the PSC was to agree on one or more of National Grid's long-term proposals by June 2020, which has now come and gone.

Respectfully, the Response Letter is unacceptable and inadequate. The letter contains many words, but says little of substance and fails to provide any details about the status of the agreement and the cause of the delay. Our request for transparency in the decision-making process on *our* long-term energy plans has gone ignored. It is particularly offensive that the PSC sent the *exact* same response to the letters of several other groups and individuals also requesting greater transparency, when *the letters* were not identical.

The Response Letter references Case 19-G-0309 (the "Rate Case"), a pending rate case involving National Grid to which several members of this coalition are also parties. Your reference to the Rate Case in the Response Letter is cause for serious concern. The fossil fuel infrastructure options that National Grid has proposed in the Long Term Options Case - which includes, inter alia, an expansion of the Iroquois pipeline system and expanding the Greenpoint

LNG facility by adding two new LNG vaporizers and a CNG truck terminal - should not, and cannot, be decided in the Rate Case.

The public has submitted over 9,000 written comments in the Long Terms Options Case and hundreds of New Yorkers testified at virtual "public meetings," which National Grid held at the height of the COVID-19 pandemic. Additionally, a substantial amount of evidence has been submitted in the Long Term Options Case, including multiple professional reports on gas demand.

To reach an agreement on National Grid's long-term proposals in the Rate Case without considering the thousands of public comments submitted in the Long Term Options Case would be to deprive the public of the right to be heard on their long-term energy future. Not only would this be a patently unfair and unjust result, it would also completely defy the very purpose of the Settlement Order, which states that the Long-Term Capacity Report "requires significant public input" and the Settlement Order "is in the public interest."

We request that you respond to the following specific questions/inquiries:

- When will the PSC be agreeing to a long-term option or options proposed by National Grid? The Settlement Order mandates a deadline of June 2020, which has not been met.
- What has been the cause of the delay in reaching an agreement?
- What factors go into the PSC's decision making process on the long-term proposals to which it will agree?
- Please confirm that the PSC is weighing each of the over 9,000 written comments, as well as the recorded testimony from the public meetings, in its analysis of National Grid's long-term proposals.
- Please confirm that the PSC will be making a decision on the long-term proposals in the Long Term Options Case and not in the Rate Case.
- The Response Letter states that National Grid has developed solutions "to ensure that customers in the region will have safe and reliable access to the energy they need *while we rapidly transition toward a clean-energy economy to meet the mandated goals of our nation-leading climate plan.*" In light of this, please confirm that the PSC is considering the "No Infrastructure Option" submitted by National Grid, which is the *only* option that complies with the CLCPA, our "nation-leading climate plan." The "No Infrastructure Option" is the option that this coalition, as well as other groups/individuals, has demanded.
- The Response Letter states that "DPS staff otherwise continues to work with National Grid to implement a comprehensive approach to long-term capacity, including the use of aggressive energy efficiency and demand response." Aside from energy efficiency and

demand response, what else is the DPS Staff working with National Grid to implement? Is DPS Staff working with National Grid to implement any of the gas infrastructure projects that have been opposed by thousands of public comments?

The Response Letter also states that the "DPS staff is closely examining National Grid's construction of the MRI project within the context" of the Rate Case. This is inaccurate. This Commission is allowing National Grid to continue to build this pipeline without expressed approval in a rate plan, during a national health care crisis, and over the objections of local elected officials and thousands of New Yorkers who live in the pathway of this pipeline. This includes beginning construction of Phase 5, which DPS Staff recommended the Commission require National Grid to pause work on until all of the supply options have been vetted[1].

This coalition, as well as the thousands of members of the public who have submitted comments in the Long Term Options Case, is losing faith in this Commission due to its lack of transparency and forthcomingness. Recently, and within a matter of days, 700 comments were submitted to the PSC demanding more transparency and accountability to the public in the Long-Terms Options Case. The ***Public Service*** Commission is supposed to be acting in the interest of the public. We are only asking that it do so.

Sincerely,

Stop the Williams Pipeline Coalition
350Brooklyn,
350.org,
Food & Water Action,
New York Communities for Change
Sane Energy Project,
Surfrider Foundation, NYC Chapter, and
Rockaway Beach Civic Association

cc: *Via email at legislative.secretary@exec.ny.gov*
Honorable Andrew M. Cuomo
Governor of the State of New York

[1] Staff Reply Brief 19-G-0309

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Three Empire State Plaza, Albany, NY 12223-1350
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July 2, 2020

Via Electronic Mail

Stop the Williams Pipeline Coalition
c/o Noelle Picone
214 Clinton Street, Apt. 4B
Brooklyn, New York 11201
campaign.rep@nyc.surfrider.org

Re: Case 19-G-0678 - Proceeding on Motion of the Commission to Investigate Denials of Service Requests by National Grid USA, The Brooklyn Union Gas Company d/b/a National Grid NY and KeySpan Gas East Corporation d/b/a National Grid.

Case 19-G-0309 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a National Grid NY for Gas Service.

Case 20-G-0131 - Proceeding on Motion of the Commission in Regard to Gas Planning Procedures.

Dear Ms. Picone:

Thank you for writing to request an update and greater transparency in the decision-making process regarding National Grid's long-term capacity options, and to stress the public's interest in, and importance of, these ongoing proceedings, as well as your concerns related to National Grid installing additional gas infrastructure known as the Metropolitan Reliability Initiative or MRI. I am responding on behalf of John B. Rhodes, CEO of the Department of Public Service (DPS).

As part of the ongoing public examination of the natural gas market in New York City and Long Island, National Grid has been directed to prepare options in addition to the Northeast Supply Enhancement (NESE) pipeline, which was recently rejected by the New York State Department of Environmental Conservation for permitting.

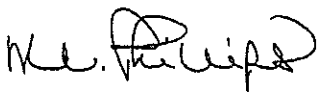
As a result of this very public examination, National Grid has developed solutions to ensure that customers in the region will have safe and reliable access to the energy they need while we rapidly transition toward a clean-energy economy to meet the mandated goals of our nation-leading climate plan. These options are being reviewed by an independent monitor and DPS staff. In publicly filed quarterly reports, the independent monitor continues to address whether National Grid is complying with the requirements of the settlement agreement, including whether it properly identified long-term capacity options.

To the extent the monitor or DPS staff determines the company is in non-compliance, recommendations of appropriate action would be made to the Commission as part of the ongoing public proceeding. DPS staff otherwise continues to work with National Grid to implement a comprehensive approach to long-term capacity, including the use of aggressive energy efficiency and demand response.

Further, please be advised that DPS staff is closely examining National Grid's construction of the MRI project within the context of the ongoing proceeding (19-G-0309), and know that the Commission has instituted a proceeding to examine the way National Grid and all of the State's local gas distribution companies plan for the future of the natural gas system, with the goal of modernizing natural gas planning to incorporate options that will help the State achieve its goals for reducing greenhouse gas emissions (20-G-0131). Your participation in that proceeding will be most welcome.

We appreciate your interest in these important issues. Your comments have been included among those submitted in these matters, and thus are part of the records in these proceedings. Please be assured that they will be carefully considered by the DPS and the Public Service Commission as work continues in these proceedings.

Sincerely,



Michelle L. Phillips
Secretary